

HOUSE No. 2496

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting harmful food dyes in competitive school foods.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/17/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/25/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>3/25/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/25/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/25/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>5/29/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/29/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>5/29/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/4/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>9/4/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>9/4/2025</i>

HOUSE No. 2496

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 2496) of Joseph D. McKenna relative to the sale or provision of certain competitive foods at schools. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting harmful food dyes in competitive school foods.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 223 of Chapter 111 of the General Laws as appearing in the 2024 Official
2 Edition, is hereby amended by inserting the following subsections

3 “(h) Beginning December 31, 2028, from the midnight before to 30 minutes after the end
4 of the school day, at each public-school competitive foods and non-sweetened carbonated water
5 may not be sold or provided on school grounds if they contain any of the following substances:

6 (i) Blue 1 - CAS 3844-45-9,

7 (ii) Blue 2 - CAS 860-22-0,

8 (iii) Green 3 - CAS 2353-45-9,

9 (iv) Red 3 - CAS 16423-68-0,

10 (v) Red 40 - CAS 25956-17-6,

- 11 (vi) Yellow 5 - CAS 1934-21-0,
- 12 (vii) Yellow 6 - CAS 2783-94-0,
- 13 (i) A school may permit the sale or provision of competitive foods that do not comply
- 14 with subsection (h) of this section if the sale of such items takes place:
- 15 (i) off and away from the premises of the school; or
- 16 (ii) on school premises at least one-half hour after the end of the school day; or
- 17 (iii) at booster sales, concession stands and other school-sponsored or school-related
- 18 fundraisers and events.”